

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KENT PENWELL,

Petitioner

VS.

REAGAN PENWELL,

Respondent

) Case Number: FDI-25-801720

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, PROPERTY
CONTROL, ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Kent Penwell (Father) and Respondent Reagan Penwell (Mother). They share two minor children subject to this proceeding: Stella Grace Penwell (DOB: 02/02/15) and Kent Ryan Penwell II (DOB: 10/05/16).
- 2) On 1/28/26, Mother filed a Request for Order seeking guideline monthly child support, \$83,143 in temporary monthly spousal support, property control (of the San Francisco property, Rancho Mirage property, and Idaho property), and \$300,000 in attorney's fees and costs. Mother attached (a) form FL-157 Spousal or Domestic Partner Support Declaration Attachment wherein she asserts "an extremely high" marital standard of living and her role as homemaker and caretaker of the children during marriage; (b) proposed XSpouse Calculations; and (c) form FL-319 Request for Attorney's Fees and Costs Attachment. The matter was set for hearing on 4/9/26.

- 3) On 3/12/26, Mother filed a Request for Temporary Emergency (Ex Parte) Orders seeking to advance the 4/9/26 hearing date alleging Father reduced the credit limit on the parties' community credit card and redirected funds away from their community bank account., which Father opposed.
- 4) On 3/13/26, the Court denied Mother's ex parte request to advance the 4/9/26 hearing date.
- 5) On 3/17/26, Mother filed an Income and Expense Declaration.
- 6) On 3/17/26, Mother filed an updated Statement of Support Calculations.
- 7) On 3/19/26, Mother's attorney filed a declaration in support of her Request for Order asserting that Mother has been seeking child support and temporary spousal support since she filed a Request for Domestic Violence Restraining Order (DVRO) on 10/7/25 in related case no. FDV-25-818682. Attached as Exhibit 8 and Exhibit 9 are charts accounting for Mother's legal fees and costs, which include attorney's fees and costs for the DVRO action.
- 8) On 3/19/26, Mother filed a Memorandum of Points and Authorities wherein she asserts she has been a fulltime homemaker and caretaker of the children while supporting Father's career at Deutsche Bank where his monthly earnings exceed \$558,000. Mother states Father has over \$60,000,000 in assets. Mother requests \$59,734 in guideline monthly child support and \$83,151 in temporary monthly spousal support for a total monthly support order of \$142,884 retroactive to 7/18/25 (i.e., the date the Petition for Nullity was filed).
- 9) On 3/26/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order. Father requests the Court order guideline monthly child support and temporary monthly spousal support pursuant to his concurrently filed Statement of Support Calculations and effective 5/1/26 due to voluntary support payments he made. Father asks the Court to impute Mother with fulltime minimum wage income and rental income for the Rancho Mirage property. Father requests the Court reserve jurisdiction over support until the Court determines whether the marriage is annulled or dissolved so that certain income, including deferred compensation and annual bonus income, can either be divided as community property or paid as bonus support. Father seeks \$86,000 in reimbursement for attorney's fees Mother withdrew from his bank account and requests the Court refrain from awarding Mother additional attorney's fees until after the nullity trial. Father asks the Court for exclusive use, possession, and control of the San Francisco

property and Rancho Mirage property. Father attached form FL-157 Spousal or Domestic Partner Support Declaration Attachment wherein he agrees the marital standard of living was “upper class and high.” Father asserts Mother worked for Meta in 2025 as an Executive Assistant, has a master’s degree in education, and has her California Teaching Credentials. Father states Mother’s LinkedIn profile shows she is a PhD candidate at Stanford. Father also attached form FL-319 Request for Attorney’s Fees and Costs Attachment.

10) On 3/26/26, Father filed a supportive attorney declaration and Memorandum of Points and Authorities asserting that (a) Mother’s request for attorney’s fees is essentially a renewal of her prior request because she is seeking fees incurred “for the DVRO matter and/or nullity matter”; (b) Father already contributed \$136,000 to Mother’s attorney’s fees; and (c) Mother is over-litigating the case and incurring unnecessary, excessive, and unreasonable attorney’s fees.

11) On 3/26/26, Father filed a Statement of Support Calculations.

12) On 3/26/26, Father filed a Request for Judicial Notice of the City and County of San Francisco’s official notice of the “Minimum Wage Ordinance.”

13) On 3/26/26, Father filed an Income and Expense Declaration.

14) On 4/3/26, Father filed an updated Statement of Support Calculations.

15) On 4/3/26, Mother filed a Notice of Lodging of Confidential Documents.

16) 4/3/26, Mother filed a Responsive Declaration in opposition to the affirmative relief Father requested in his Responsive Declaration. The Court will consider this a Reply Declaration and treat it as such. It is Mother’s position that Father’s Statement of Support Calculations excludes most of his monthly income and fails to account for Father’s overall wealth and assets. Mother asserts retroactive support orders are warranted given that Father filed a Petition for Nullity on 7/18/25 and was served with a request for support orders on 10/10/25. Mother disputes Father’s allegations regarding her allegedly excessive spending, mismanagement of the Rancho Mirage rental property, and imputation of income.

17) On 4/6/26, Mother filed a supplemental attorney declaration attaching redacted billing statements.

18) On 4/6/26, Mother filed an opposition to Father’s Request for Judicial Notice disputing its relevance.

1 19) On 4/6/26, Mother filed a Reply Memorandum of Points and Authorities reiterating: (a) her
2 opposition to Father's position; and (b) her requests.

3 20) At the prior 4/9/26 hearing, the Court ordered, in pertinent part:

- 4 a. The Court finds imputation of minimum wage income to Mother is consistent with the
5 best interests of the children, taking into consideration the overall welfare and
6 developmental needs of the children, and the time that Mother spends with the children.
- 7 b. Based on the foregoing, the Court finds good cause to adopt Father's Statement of
8 Support Calculations filed 4/3/26, which are attached hereto and incorporated herein, and
9 order as follows:
- 10 c. Mother's request for guideline child support and temporary monthly spousal support is
11 GRANTED effective 1/28/26 (i.e., the filing date of the Request for Order). The Court
12 notes that Mother's Request for DVRO filed 10/7/25 in related case no. FDV-25-818682
13 wherein she requested child support and spousal support was dismissed on 1/21/26.
- 14 d. For the period of 1/28/26 (i.e., the filing date of the Request for Order) to 4/2/26 (i.e.,
15 when the parenting timeshare was adjusted), Father owes Mother \$18,611 in guideline
16 child support and \$26,323 in temporary monthly spousal support for a total monthly
17 support payment of \$43,660. Child support add-on expenses shall be allocated 39% to
18 Mother and 61% to Father. See Attachment 1 of Father's Statement of Support
19 Calculations filed 4/3/26. The Court reserves jurisdiction over guideline child support and
20 temporary monthly spousal support arrears owed by Father to Mother for trial given that
21 Father paid voluntary expenses that require an accounting.
- 22 e. Effective 4/3/26, Father owes Mother \$16,823 in guideline child support and \$24,277 in
23 temporary monthly spousal support for a total monthly support payment of \$39,902.
24 Child support add-on expenses shall be allocated 47% to Mother and 53% to Father. See
25 Attachment 2 of Father's Statement of Support Calculations filed 4/3/26. Father shall pay
26 support by the 1st of every month, except April 2026 support is due 4/15/26.
- 27 f. The Court reserves jurisdiction over characterization and allocation of Father's deferred
28 compensation and annual bonus income so that the Court can first determine whether any
29 portion of such funds is community.

- 1 g. The Court reserves jurisdiction to modify the support orders made herein retroactive to
2 1/28/26, including, but not limited to, issuing an order for Smith/Ostler bonus support.
3 The matter is CONTINUED to 7/21/26 at 9 AM in Dept. 403 for the Court to make any
4 necessary modifications to the support orders made herein. The Court selects this hearing
5 date since the parties are set for nullity trial on 6/25/26 and 6/30/26. Both parties shall
6 submit update declarations, updated Income and Expense Declarations, and updated
7 Statement of Support Calculations at least 10 days in advance of the 7/21/26 hearing.
- 8 h. Mother's request for \$300,000 in attorney's fees and costs is GRANTED subject to
9 reallocation. The Court finds an award of attorney's fees and costs is appropriate because
10 there is a substantial disparity between the parties in access to funds to retain or maintain
11 counsel and in the ability to pay for legal representation. The Court makes this award to
12 ensure parity in this action as Father has the ability to pay for legal representation for
13 both parties. The Court finds the requested attorney's fees and costs are reasonable and
14 necessary based on a totality of the circumstances; however, the Court is concerned that
15 counsel for Mother is over-litigating the case. Counsel for Mother is admonished to
16 adjust litigation strategies accordingly. Father shall pay the \$300,000 balance in full
17 within 30 days.
- 18 i. Both parties' requests for property control orders are DENIED.

19 21) On 7/10/26, Father filed an updated Statement of Support Calculation, Income and Expense
20 Declaration, and a supportive declaration regarding his position on retroactive child and spousal
21 support and post-separation accounting and characterization of his deferred compensation.
22 Attached as "Attachment 1" is a report by Jeff Stegner of Bridge Forensic. Father requests the
23 Court: (a) order that no child or spousal support arrearage is owed to Mother through 7/1/26; (b)
24 find that Mother owes Father a reimbursement of \$127,814 or \$136,486 or reserve on the issue of
25 reimbursement; (c) order that Mother immediately assume all carrying costs for the San Francisco
26 residence; (d) order that Mother immediately assume all carrying costs for the Idaho property
27 (including the related club membership); and (e) order that Mother share equally in the carrying
28 costs of the Rancho Mirage property and equally share any rental income received.

22) On 7/10/26, Mother filed an updated Statement of Support Calculation and Income and Expense Declaration. Mother retained Certified Public Accountant, Jessica Lordan to perform an accounting. It is Mother's position that Father owes her guideline base monthly child support of \$19,190 and spousal support of \$30,796, for a total of \$49,986 in total monthly support plus Smith/Ostler support. In addition, Mother requests the Court: (a) order Father to pay \$35,278 in retroactive spousal support for the period of 1/28/26 – 1/31/26; (a) order Father to pay \$21,717 in retroactive child support for the period of 17/18/25 – 1/31/26.

B. Findings and Order

- 1) The disputes regarding the parties' finances are complex; therefore, more than the time allotted on the Court's law and motion calendar is needed to adequately evaluate: (a) characterization and allocation of Father's deferred compensation and annual bonus income (so that the Court can first determine whether any portion of such funds is community); (b) any necessary modification of the support orders issued on 12/16/25 retroactive to 1/28/26, including, but not limited to, issuing an order for Smith/Ostler bonus support.
- 2) As such, **the parties are ordered to appear** to select a date to return for hearing on the Court's long-cause calendar. The Court will set the matter for hearing at 1:45 PM; however, the hearing will be conducted in the manner of a short-cause hearing. No additional filings are necessary.
- 3) The Court continues to reserve jurisdiction to modify support retroactive to 1/28/26.